

Mohd. Tasleem Parvez v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 25 May 2022 · WRIT - C No. 14482 of 2022 · **Writ disposed; liberty to object under para 6.8; coercive action stayed eight weeks.**

HEADNOTE

Without examining merits, the Allahabad High Court disposed of a writ against a recovery citation by granting the consumer liberty to file an objection under para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks. The designated authority was directed to decide that objection, after hearing, within the next four weeks. Coercive action on the citation was stayed for eight weeks or until disposal of the objection, whichever was earlier.

FACTUAL SUMMARY

Mohd. Tasleem Parvez sought a writ of certiorari to quash a recovery citation dated 30 December 2021 for Rs. 1,18,722 issued by the electricity distribution licensee. At the hearing, counsel for the licensee stated on instructions that the petitioner could file an objection to the demand, which would be decided in accordance with law within a time-bound period. The Court acted on that statement without examining the underlying assessment or the validity of the citation.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to recovery citation and stay of coercive action

HOLDING

A writ challenging a recovery citation may be disposed of without merits by granting the consumer liberty to file an objection under para 6.8 of the U.P. Electricity Supply Code, 2005 within a fixed time, directing the designated authority to decide that objection after hearing within a further fixed time, and restraining coercive action on the citation until the objection is decided or a short outer period expires, whichever is earlier. ¶ 4-5

PRINCIPLE TAGS

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay

If a para 6.8 objection is filed within four weeks, respondent no. 3 must decide it within the next four weeks after hearing, and coercive recovery is stayed for eight weeks or until disposal, whichever is earlier. ¶ 4-5

assessment-6.8-alternate-remedy

The writ was disposed without opinion on merits, relegating the petitioner to the para 6.8 objection against the impugned recovery citation. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION DATED 30.12.2021 FOR RS. 1,18,722

The Court expressly declined to express any opinion on the merits of the petitioner's challenge. ¶ 4